INTERNATIONAL SPACE LAW AND DOMESTIC LAW: PROBLEMS OF INTERRELATIONS

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1. *Interaction of International Space Law and Domestic Law in Space and Time*

The activities associated with the exploration and use of outer space are carried on not only in outer space proper, but also on the Earth. While these activities such as the development of facilities of rocket-space technology along with launching sites and operations related to the launching of space vehicles take place within the confines of a state territory they are governed, in the main, by the rules of national law. Upon emerging into outer space, these activities come, primarily, under the rules of international space law. This "geographical" delimitation of the spheres of operation of national law and international space law, however, is valid only to the extent to which we can speak about a predomination of one or another system of law.

International space law regulates the relationships among states and among other subjects of international law in connection with their activities in outer space not only subject to the place of the said activities, but also subject to their nature and time of performance. A combination of the three mentioned factors, namely place, nature and time, directly influences the sphere of operation of definite rules of international space law. Thus, the provisions of the Outer Space Treaty[1] in Article IV, prohibiting any military activity on the moon and other celestial bodies, strictly determine the place and nature of the activity. The obligation, provided for under Article IX, to avoid harmful contamination of outer space and celestial bodies and adverse changes in the environment of the Earth resulting from the introduction of extraterrestrial matter is primarily associated with the nature of activities both on the earth and in outer space. Operations related to the rescue and return of cosmonauts in distress and recovery of space objects regulated by the Rescue Agreement[2] provide for the activity on the Earth. Space objects come under international space law, as a rule, beginning with their launching into outer space.

Thus, we see that rules of international space law are space, function and time oriented and are designed for application not only in outer space but in aerospace and on the surface of the Earth. Naturally, when these rules are to be applied on a territory

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[1]Treaty on Principles Governing Activities of States in the Exploration and Use of Outer Space, Including the Moon and Other Celestial Bodies, January 27, 1967, 18 UST 2410, T.I.A.S. 6347, 610 U.N.T.S. 205. (effective Oct. 10, 1967). For the Russian text, see: Reports of the Supreme Soviet of the U.S.S.R., 1967, No. 44, at 588 (hereinafter cited as the Outer Space Treaty).

[2]The Agreement on the Rescue of Astronauts, the Return of Astronauts and the Return of Objects Launched into Outer Space, April 22, 1968, 19 U.S.T. 7570, T.I.A.S. 6599, 672 U.N.T.S. 119 (effective Dec. 3, 1968). For the Russian text, see: Reports of the Supreme Soviet of the U.S.S.R., 1969, No. 6 at 31 (hereinafter cited as the Rescue and Return Agreement).

of a sovereign State, questions arise about the interrelation of international and national legal orders and the legal force of international rules within the framework of a national legal order.

To a certain extent, the rules of domestic law which govern the activities in outer space also are characteristic of the spatial and the functional approach. Though these rules are primarily designed for operation within a country and in terms of territory do not extend to outer space proper, their sphere of operation covers people and objects in outer space.

In other words, there is a reciprocal "penetration" of international space law and domestic law into areas which may be the appropriate spheres of their primary regulation. This, however, is not a spontaneous process, rather a deliberate one, necessitated by the complexity of interrelationships of national and international space activities.

The general treaties on space, in a number of instances, provide directly for the operation of rules of domestic law in outer space. In keeping with the rules of national law we see the exercise of the jurisdiction and control over space objects and "over any personnel thereof" while in outer space or on a celestial body. Ownership of space objects launched into outer space and of their component parts can also be regulated by national law.[3]

A specific feature of the interaction of international and national legal orders in outer space is the link-up with the law of the State where the space object is registered. This important provision of the Outer Space Treaty reduces, though it does not completely exclude, the probability of collisions of national legal orders of different States in outer space. In keeping with the mentioned Article VIII of the Outer Space Treaty, a State on whose registry an object launched into outer space is carried retains jurisdiction and control over such object and over any personnel thereof: *i.e.* the jurisdiction of the State of registry becomes thereby exclusive and prevailing over all other possible legal bases, for instance, nationality of crew members or the right of ownership of the space object.

Though prior to the flight and upon its completion, space objects and their crews may be under the jurisdiction and control of other States, rather than the State of registry, for instance, when the flight is performed by an international crew, while they are in outer space, the exclusive rights of jurisdiction and control belong to the State of registry. This State, however, should assure that the operation of the space object and of its crew towards which it exercises its jurisdiction and control should be in full compliance with the requirements of international space law. Hence the registration of a space object is not a voluntary act; it may be exercised only by the State which stands in real relation to the space object and its crew and which can effectively control and regulate their actions.[4]

Since outer space is mainly a sphere of activities of international rather than of national orders, the terms "jurisdiction and control" rather than sovereignty are used in treaty rules of international space law when identifying rights and powers of States towards space objects and their crews. It is understood that the scope of rights and

[3]Outer Space Treaty, art. VIII.

[4]For greater detail, see Vereshchetin, "Legal Status of International Space Crews", 3 Ann. Air & Space L. 546-552 (1978).

powers ensuing from jurisdiction is not as broad as the rights and powers inherent in sovereignty as a whole. It is, however, indubitable that jurisdiction and control, which are spoken of in space treaties, represent an aspect of sovereignty and incorporate the rights and powers to exercise legislative, judicial and administrative authority towards personnel and objects in outer space, including celestial bodies. As it is properly pointed out by a well-known U.S. specialist in international space law, S. Gorove, "traditional aspects of territorial sovereignty are the ones that have been abolished in relation to outer space; but the functional aspects of sovereignty, the exercise of sovereign rights and similar manifestations, continue to be recognized."[5]

The problem of competing national jurisdictions in outer space has not been fully resolved. The problem could become very pressing in the future if several states contribute to the development of large-size assembled structures in outer space and subsequently of international space communities. However, the link-up with the law of the State of registry makes a positive solution rather easy at the present level of exploration and use of outer space. The situation is more complex in the event of an emergency landing of a space object and its crew beyond the territory of its own State. In a given situation the law of the State of registry is no longer the sole national law covering the space object and its crew.

It is not without interest in this connection to see the alteration of the legal status of a space object and its crew subject to the factors of time and place, and also to the nature of interaction of international space law and the national law of different states.

Before the launching of a space object the activity related to its development and the preparation for launching is, as a rule, completely in the sphere of national regulation of the given state. Its legal status is determined by the rules of domestic law. However, even in this stage, the state is obliged to observe a number of requirements of international space law, for instance, not to install weapons of mass destruction on objects designed to orbit the Earth, and to ensure, whenever necessary, certain measures are taken to avoid harmful contamination of a celestial body. Besides this, in case of a joint development or launching of a space object, its legal status for instance, ownership relations, may be largely determined by an appropriate bilateral or multilateral agreement of the collaborating states.

Beginning with the launching of the space object or its construction in outer space including celestial bodies, it comes, primarily, under the rules of international law. The Liability Convention[6] in Article I clarifies that the term "launching" includes attempt launching. This means that in case of damage, as it is provided for by the Convention, even in case of an unsuccessful launching, the relations of international legal liability arise.

While in outer space, including celestial bodies, a space object does not sever its legal relationship with its State, provided one important condition is observed: it has to be on the registry of the given State. All other possible legal bases, for relation to the space object, besides registry, while the object and its crew are in outer space have a

[5]Gorove, "Sovereignty and the Law of Outer Space Reexamined", 2 Ann. Air & Space L. 321 (1977).

[6]Convention on International Liability for Damage Caused by Space Objects (hereinafter "Liability Convention"), March 29, 1972, [1973] 24 U.S.T. 2389, T.I.A.S. 7762 (effective Oct. 9, 1973). For the Russian text, see: Collection of operative treaties, agreements and conventions concluded by the U.S.S.R. and foreign states. 29 M. Mezhdunarodnye Otnosheniya Publishers 95-101 (1975).

secondary, subordinate role. As it was shown earlier, the State of registry acquires not only the right of exercising exclusive jurisdiction and control over a space object and its crew but shall bear responsibility for assuring that their activities are carried out in conformity with the provisions of international space law. The right of ownership of space objects and of their component parts while in outer space is retained by the same States, juridical entities or physical persons to whom they belonged prior to the flight.[7]

Upon return to the Earth the legal status of a space object and of its crew changes again. From that moment it depends largely upon the place of landing: a) the territory of the launching State, b) the territory of some other State, or c) the territory not under the jurisdiction of any state such as the high seas or the Antarctic. In the first case, the specific rules of international space law are no longer applicable to the object and its crew; they come fully under the national law of their country. In case of an international launching, their further legal status is determined by agreement among the cooperating states.

In case of an emergency landing on a foreign territory, the space object and its crew remain in the sphere regulated by international space law such as the order of search and rescue and the liability for damage. Simultaneously, they come under the operation of two or more competing national jurisdictions: the State on the territory of which the object and its crew landed, the State of registry, the launching State, the State which owns the space object or the State (s) whose nationals are members of the crew. A similar problem of competing jurisdictions might arise in the event of the space object landing on the high seas or any other area not under the jurisdiction of any state.

The choice of jurisdiction in such situations has not been specifically regulated by international space law. As for the crews, it follows from Article V of the Outer Space Treaty and Article IV of the Rescue Agreement, which make prompt return of cosmonauts in distress obligatory, that preference should be given to the jurisdiction of the State of registry.[8] The same State, most likely, should be given the preference to exercise jurisdiction in case the cosmonauts land on the high seas. The treatment of cosmonauts as "envoys of mankind in outer space" in Article V of the Outer Space Treaty does not free them from the responsibility to stringently comply with the laws of the State in which they happen to stay as a result of an emergency landing. In the event of an intended, unauthorized landing on a foreign territory, the prevailing jurisdiction is that of the territorial sovereign.

Selection of jurisdiction in relation to the space object itself may present difficulties. At the same time, the responsibility established by Article VIII of the Outer Space Treaty and Article V of the Rescue Agreement, of the state on whose territory a space object has been found is to return that object or its component parts upon request of the State of registry as per the Outer Space Treaty or "launching authorities" as per the Rescue Agreement. This should most likely be interpreted to mean that under international space law the factors of registry and place of launching of a space object prevail over other possible bases for jurisdiction. It also should be taken into

[7]Outer Space Treaty, art. VIII.

[8]It should, however, be borne in mind that the Outer Space Treaty, art. V, provides for the return of cosmonauts "to the State of registry of their space vehicle," while the Rescue and Return Agreement, art. IV, states the return "to representatives of the launching authorities."

consideration that the ownership of space objects and of their component parts is not affected by their return to the Earth.

The question of competing jurisdictions over space objects might arise also in the event of the passage of air space of foreign States or over the high seas on its way to outer space or during its return to the Earth. True, the probability of such a question arising in practice is slight owing to the briefness of the stay of an object in air space and because the rule of free passage of a space object in the air space of other states during take-off or landing is finding increasing recognition. As for maneuvering and other operations in the air space of another state, they definitely call for advance agreement of the territorial sovereign.

Space activity, thereby, is regulated by international law and by domestic law. The degree of influence of one on the other system of legal rules upon this activity depends upon the place, nature and time of the activity. The international legal aspect of activities in outer space is regulated in greater detail than that of national. National space laws of even large powers are but in the embryonic stage. The rules of international space law determine the framework of operation of national jurisdiction in outer space and only outline the ways of avoiding collisions of national jurisdictions on the Earth.

As space studies and their applications become further extended and more complex, a better developed mechanism of legal regulation within and among states shall be necessary. However, the elaboration of international space law and of national space law and their relationship and coordination cannot be channeled into developing "an integrated legal system for space" as some lawyers believe.[9] Two independent systems of law, international and national, can be coordinated, concerted and made consistent but not integrated into a single system. This gives rise to another important question, the mechanism of application of international space law within a given State, the binding force of its rules for the organs of a State, organizations and physical persons.

II. Implementation of the Rules of International Space Law Within the Sphere of Domestic Law

The exploration and use of outer space is carried on by means of automatic and manned space vehicles which are designed, developed, launched and controlled in outer space not by States as such, but by concrete state owned or private entities. Space flights are performed by nationals of definite countries. This means that space activities of *States* which are the subject of space treaties and for which States bear international legal responsibility are actually implemented by *juridical entities and physical persons.*

Hence, there exists the legal problem of the binding nature of international space law provisions for state owned or private entities and for individuals. Since the subjects of international space law, as of a branch of international public law, are states and intergovernmental organizations, rather than the juridical entities and physical persons, the problem should be resolved in the context of the general theory and practice of relationship of international and domestic law. In more concrete terms it is associated

[9]DeSaussure, "An Integrated Legal System for Space", 6 J. Space L. 179-192 (1978).

with the rules of implementation of international treaties in conformity with the national legislation of different states.

In settling the problem in the light of the mentioned general standpoint one must take into consideration the specific nature of legal regulation of space activities. These specifics are manifested, in particular, as follows. Firstly, national space law, thus far, is still in its formative period, and in most countries non-existent. Hence, the urgency of the question exists in intrastate relations concerning the possibility of applying the rules of international space law which, as it is known, is based in the main, on treaties. Secondly, a number of rules of international space law seem to be directly addressed to physical persons and juridical entities. Thus, Article V of the Outer Space Treaty states, "In carrying on activities in outer space and on celestial bodies, the *astronauts* of one State Party shall render all possible assistance to the *astronauts* of other State Parties" [emphasis added]. Article VI of the same treaty determines that "the activities of non-governmental entities in outer space. . . shall require authorization and continuing supervision by the appropriate State. . .".

In several recent years, in connection with the adoption of the New Constitution of the USSR (1977) and the Law on the Order of Conclusion, Execution and Denunciation of International Treaties of the USSR (1978)[10], a number of papers by Soviet lawyers specializing in international affairs have been published touching specifically or indirectly on the problems of the relationship of the international and domestic law.[11] These questions have been discussed at the annual meeting of the Soviet Association of International Law in 1979.

The Soviet theory of international law is undivided on the fact that international law and domestic law are two independent legal systems which function in different spheres while being closely interrelated. Neither of them, as a complete system, prevails over the other but both are under strong reciprocal influence and are in need of coordination.

Since we regard international and national law as two legal systems operating in different spheres, we are bound to make a logical conclusion that the rules of national law, provided they have not also become treaty or customary international rules, cannot regulate international relations; and the international legal rules which have not become national rules, cannot regulate domestic relations. At the same time, however, it should not be overlooked that while the rules of national law express the will of only one sovereign State and are not therefore binding for other States owing to the principles of sovereign equality and independence of States, the rules of international treaties, a party of which is a given State, reflect the will of that State too.

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[10]Subsequently referred to as the Law of 1978. See its text in the Reports of the Supreme Soviet of the U.S.S.R., 1978, No. 29, art. 439.

[11]*See* Usenko, "Theoretical Problems of the Relationship of International and Domestic Law," 1977 Soviet Y. B. Int'l. L. 57-90; Lukashchuk, "The Relationship of the Domestic and International Law in the Light of the New Constitution of the U.S.S.R.," 8 Mezhdunarodnye Otnosheniya i Mezhdunarodnoye Pravo 313 (1979); Tunkin & Mullerson, "The Law of International Treaties of the U.S.S.R.," Sovietskoye gosudarstvo i pravo, 1979, N 2, p. 22-31; Talalayev, "The Law of International Treaties," M. Mezhdunarodnye Otnosheniya 161-165 (1980); Talalayev, "The Law of International Treaties of the U.S.S.R. in the Service of Peace," M. Yurdicheskaya Literatura 41-60 (1979).

Having undertaken an international treaty obligation, a State owing to the principle of *pacta sunt servanda* is bound to undertake all the necessary measures to prevent the violation of the obligation by actions of its physical or juridical entities. International law leaves the choice of the relevant techniques and means to the discretion of the State concerned, without predetermining the mechanism of the national implementation of the rules of international law.

With the idea of observing its international obligations a State may adopt special laws or other normative acts which create, alter or repeal domestic rules and thus, seemingly transform international legal rules into rules of national law which is the so-called transformation act[12]. We use the expression "seemingly transform" because, in real fact, we deal in such cases not with a transformation of international rules into domestic ones, but with the emergence of domestic rules which correspond to international ones.

Wide use is also made of different types of the so-called acts of referral or referral rules which do not establish new rules of national law, but rather authorize the application of rules of international treaties to one or another area of internal regulation.[13] Most likely, requests addressed to State and other organizations and persons to take guidance from the provisions of an international treaty, which are made sometimes upon ratification (approval) by the supreme authority of the State might be considered a form of referral. However, even in the absence of specific transformation or referal acts, it is improper, to our mind, to conclude that in this event, provisions of international treaties, which are binding for a given state, may be viewed as unobligatory by state organs which are responsible for the observance of state commitments. Such a conclusion would be directly contradicting the principle of observing in good faith international treaties by states. It would be more proper to conclude that in this event, a State taking guidance from certain considerations had found it unnecessary to issue a specific internal act, in the understanding that even in its absence the treaty provisions would be observed by the relevant organs. In this case, the ratification (approval) of a treaty can be viewed as a tacit authorization of its application by appropriate organizations. A different interpretation would be tantamount to a State failing to create the necessary national normative ordinances and deliberately giving way to violations of its international legal obligations.

The intrastate binding nature of international legal rules sets the moment a treaty enters into force for the given state. It is therefore important that it should be timely published or in any other way brought to the notice of the organizations and entities concerned. As it was indicated earlier, in some cases, this is accompanied by the institution of appropriate rules of national law; in other cases, the matter at issue is simply the application of definite rules of international treaties in the internal sphere of a state. It is known that international and national rules differ by their legal and social nature. It is therefore, not always expedient or possible to "transform" international

[12]A number of Soviet authors use the term "transformation" in a broader meaning of the word to designate any juridical relationship of international and national law. According to these authors, the application of international rules to national sphere is impossible without transforming them into rules of national law. See more about this in Usenko, *supra* note 11, at 67-80.

[13]*See* Tunkin & Mullerson, *supra* note 11, at 29.

rules into national. At times it is simply enough to apply the requirement of international treaties by competent organs. This is besides saying that there is the category of the so-called "selfexecuting" treaties which relate only to the state as a whole.

It should be also borne in mind that all the known juridical-technical models of domestic observance of international treaties have their advantages and drawbacks. Let us say, that simply to declare all international treaties concluded by a given state a part of the law of the land does not, as such, guarantee the observance of the provisions of these treaties in the domestic sphere. Thus, in the U.S.A. where this formula is adopted under Article VI of the Constitution, there operates, according to American lawyers, a rule in keeping with which "federal statute prevails not only over a previous statute, but also prevails over previous international treaties and agreements."[14] In other words, the national law of the United States being placed on an equal standing with the rules of international treaties might repeal the operation of the latter in the internal sphere following the principle of *lex posterior derogat prior* and thus entail the violation of international obligations contrary to the principle of *pacta sunt servanda.* Besides this, the treaties, though they are declared "the supreme law of the land," require an implementing legislation to be operative in U.S. courts.[15]

Let us now turn to the relevant rules of Soviet legislation. Article 29 of the Constitution of the U.S.S.R. determines that "the U.S.S.R.'s relations with other states are based on. . . fulfillment in good faith of obligations arising from the generally recognized principles and rules of international law, and from the international treaties signed by the U.S.S.R.". This means that the generally recognized international legal principle of observing in good faith international obligations is also a constitutional principle in the Soviet Union.

The Constitution of the U.S.S.R. just as the constitutions of the majority of other countries, does not contain a general provision regarding the order of operation of international legal rules in the territory of the U.S.S.R. or regarding the order of settling collisions between national and international legal rules. At the same time, as it is correctly pointed out by I.I. Lukashchuk, "constitutional formalization of the principle of observance of international obligations in good faith means that all organs, organizations and individuals who come under the operation of Soviet law are bound to respect rules of international law. This obligation arises from the Constitution itself and does not require a confirmation by an additional legislative act."[16] We may add that Soviet legislation does not make this obligation subject to some preliminary condition of embodying rules of international law into rules of Soviet domestic law.

The need in appropriate national normative acts is determined by the Council of Ministers of the U.S.S.R. which is instructed to take measures to assure the observance of international treaties signed by the U.S.S.R.[17] Suggestions about the adoption of acts of

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[14]Gorove, "Legal Aspects of the Space Shuttle," 13 Int'l Law. 157 (1979).

[15]DeSaussure, *supra* note 9, at 185; Gorove, *supra* note 14, at 157-58.

[16]Lukashchuk, *supra* note 11, at 9.

[17]Art. 131, § 6 Constitution of the U.S.S.R. and art. 20 of the Law of 1978, *supra* note 10.

domestic law necessary for the observance of an international treaty signed by the U.S.S.R. are submitted by ministries, State Committees and administrations of the U.S.S.R. concerned, upon agreement with the Ministry of Justice of the U.S.S.R. as per Article 24 of the Law of 1978. These State organs may issue also their own normative acts if they are necessary and would assure the observance of international obligations.

The provision of the Law of 1978, namely that "ministries, State Committees, administrations of the U.S.S.R., Councils of Ministers of Union Republics and other state organs whose sphere of competence covers questions regulated by international treaties of the U.S.S.R., assure the fulfillment of treaty obligations undertaken by the Soviet side" . . . is of a fundamental importance for the question which we are considering (Article 21). This provision of the Law of 1978 directly provides for not only international legal, but also the national legal binding character of the treaties, a Party to which is the Soviet Union.[18] Again, the binding nature is unconditional and not subject to a preliminary embodiment of international legal rules into rules of domestic law.

It may be concluded from all this that, according to Soviet legislation, provisions of international treaties concluded by the Soviet Union even in the event when no corresponding national normative act has been issued are binding for the state organs within their terms of reference.

As it was mentioned earlier, the Constitution of the U.S.S.R. does not carry any general rule in case of a collision between the rules of Soviet law and rules of international treaties. At the same time, a number of laws of the U.S.S.R. and of Union Republics stipulate that in case of such collisions, the rules of international treaties should be applied. Such formulations are included into the fundamentals of Soviet legislation for 20 spheres of regulation which make it possible to speak about an emerging principle.[19] Considering, however, that this rule is not on record as a general rule in the Law of 1978, it would most likely be premature to extend it automatically to all possible cases of collisions between the rules of the law and of the treaty.[20]

With the idea of avoiding such collisions, the Law of 1978 provides for a number of measures, both in the stage of preparation, conclusion and ratification of international treaties, and in the process of their internal implementation. Thus, in keeping with article 6 of the Law of 1978, "suggestions to conclude international treaties of the U.S.S.R. which establish other rules than those contained in Soviet legislation are submitted to the Council of Ministers of the U.S.S.R. upon agreement of the Ministry of Justice of the U.S.S.R."

This requirement of the Law makes it possible, in case of need, to begin the process of coordination of the rules of domestic law and the provisions of the future treaty at a very early stage. The same objective is in the requirement of the Law about obligatory ratification of treaties which establishes other rules than the ones contained in legislative

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[18]Tunkin & Mullerson, *supra* note 11, at 28.

[19]*See* A.A. Gromyko, Report at the Session of the Supreme Soviet of the U.S.S.R. on the Draft Law on the Order of Conclusion, Execution and Denunciation of International Treaties of the U.S.S.R. Pravda, July 7, 1978.

[20]Another point of view is offered by Lukashchuk, *supra* note 11, at 10-11; G.V. Ignatenko and D.D. Ostapenko (eds.), International Law 82 (1978).

acts of the U.S.S.R. (Article 12, Part 1). Finally, to fulfill international treaties of the U.S.S.R., as it was already mentioned earlier, whenever necessary, a provision is made for the institution of specific legislative acts, the suggestions about adoption of which should be agreed upon in advance with the Ministry of Justice of the U.S.S.R. In those cases when collisions are possible with other rules of national law, such acts usually authorize the application of appropriate provisions of an international treaty. The system of mentioned measures minimizes the possibility of collisions between domestic and international rules of law.

The important practical conclusion arising from these provisions of Soviet legislation for the area of space law, which is of interest to us, is as follows. Despite the fact that the ratification of multilateral general treaties on space was not accompanied by the adoption of specific national normative acts in the Soviet Union in addition to the Decrees about their ratification, the provisions of these treaties are legally binding not only for the State as a whole in international relations, but also for appropriate State organs and organizations which, within their competence, should apply them in their work associated with the exploration and use of outer space.